

Smt. Shanti Devi v. Managing Director, Pashchimanchal Vidyut Vitran & Anr.

Allahabad High Court · Division Bench · 18 July 2016 · 2016 SCC OnLine All 2320 · Writ - C No. 32193 of 2016 · **Writ petition dismissed**

HEADNOTE

A consumer who has admittedly consumed electricity cannot be permitted to continue using it without clearing the bills; where payment has not been made, disconnection is inevitable, and the plea that no bill was ever raised does not entitle the consumer to free consumption. The writ court declined to interfere, leaving the consumer to have her dispute resolved under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

No free consumption; disconnection for non-payment inevitable, dispute to be resolved under the Code

QUESTION

Can a consumer who consumed electricity resist disconnection on the plea that no bill was raised?

HOLDING

No. A consumer who has consumed electricity cannot use it without clearing the bills; on non-payment disconnection is inevitable, and the plea that no bill was raised gives no right to free consumption. The Court did not interfere, relegating the consumer to the billing-dispute remedy under the Act and the Code. ¶ 2-4

LIMITING FACTS

Connection disconnected; consumer admitted consuming electricity but said no bill had been raised.

PRINCIPLE TAGS

no-free-consumption-disconnection-for-non-payment

A consumer who consumed electricity must clear the bills; non-payment justifies disconnection, and the absence of a raised bill is no licence for free consumption - the remedy is to resolve the billing dispute under the Code. ¶ 2-3